

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, AUGUST 4, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**SILVERIO ROSALES vs. MAIN ELECTRIC SUPPLY COMPANY LLC; ET AL.
Case No. CU23-02346**

Plaintiff's Motion to Compel EXPRESS's Compliance with Discovery Order

TENTATIVE RULING

The Parties are to appear.

**DISCOVER BANK vs. MARIA CECILIA OCAMPO
Case No. CL25-03879**

Plaintiff's Motion for Summary Judgment

TENTATIVE RULING

Plaintiff CAPITAL ONE, N.A., successor by merger to original plaintiff DISCOVER BANK, moves for summary judgment on its complaint alleging breach of contract against Defendant MARIA CECILIA OCAMPO.

The court has not received opposition to the motion.

Legal Standard. A plaintiff may move for summary judgment on the basis that there is no defense to the action. (Code Civ. Proc., § 437c, subd. (a)(1).) A plaintiff's summary judgment motion meets his burden of showing there is no defense to his cause(s) of action if the plaintiff proves each element of the cause(s) of action. (Code Civ. Proc.,

§437c, subd. (p)(1).) A summary judgment motion is properly granted where the evidence in support of the moving party would be sufficient to sustain a judgment in his favor and his opponent does not show facts sufficient to present a triable issue of fact. (*Parker v. Twentieth Century-Fox Film Corp.* (1970) 3 Cal.3d 176, 181 (*Parker*).) The motion is not to be granted where any triable issue of material fact exists. (*Ibid.*)

Affidavits, declarations, admissions, answers to interrogatories, depositions, and matters judicially noticed may all support a motion for summary judgment, provided they contain admissible evidence. (Code Civ. Proc., §§ 437c, subd. (b)(1), (d).) Allegations in a party's own pleadings may not satisfy deficiencies in evidence. (Code Civ. Proc., § 437c, subd. (p).) Allegations in an opposing party's pleadings may be considered evidence, however. (*Parker, supra*, 3 Cal.3d at p. 181.)

The affidavits of the moving party are strictly construed and doubts as to the propriety of summary judgment should be resolved against granting the motion. (*Parker, supra* 3 Cal.3d at p. 181.) Reasonable inferences from the evidence must be drawn in the light most favorable to the opposing party. (*Syngenta Crop Protection, Inc. v. Helliker* (2006) 138 Cal.App.4th 1135, 1155.)

Elements of Causes of Action. The elements of a cause of action for breach of contract are (1) the existence of a valid contract, (2) the plaintiff's performance or excuse for nonperformance, (3) breach, and (4) damages. (*Stockton Mortgage, Inc. v. Tope* (2014) 233 Cal.App.4th 437, 447.)

Plaintiff's undisputed material facts establish that Plaintiff provided Defendant a line of credit on which Defendant incurred charges. (Plaintiff's Undisputed Material Facts ("UMF") #1-3.) Defendant is obligated to repay Plaintiff for credit used. (UMF #1-2.) Plaintiff sent Defendant regular monthly statements of the account, which were not disputed. (UMF #4-5.) Defendant has defaulted on payments for the line of credit. (UMF #6-7.) Defendant owes \$22,087.32 on the line of credit. (UMF #8.)

These undisputed material facts establish every element of Plaintiff's cause of action for breach of contract. Defendant does not raise a triable issue of material fact in response as Defendant has filed no opposition and raises no independent evidence.

Conclusion. Plaintiff's unopposed motion for summary judgment is granted.

BANK OF AMERICA N.A. vs. STELLA MALL
Case No. CL25-06057

Motion by Defendant to Set Aside Default and Default Judgment

TENTATIVE RULING